

Court No. - 37

Case :- WRIT - C No. - 42971 of 2017

Petitioner :- Sanjay Kumar Sharma

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravindra Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department.

The petitioner has come up only against a demand notice against the petitioner by the respondent no.2 alleging that the petitioner has unauthorizedly used the electricity as against the connection given to him. The allegations are of the consumption of electricity having been utilized for the construction purpose.

In our opinion this is only a demand notice and it is open to the petitioner to approach the respondent no.2, Executive Engineer who in view of the provisions of Section 126 of the Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005 shall proceed to adjudicate any billing issue arising out of assessment and consequently we dispose off this writ petition with liberty to approach the respondent no.2 for the said purpose in the event a certified copy of this order is filed before him within a week the Executive Engineer shall proceed to pass an appropriate order within two weeks thereafter.

Writ petition is disposed off with the said directions.

Order Date :- 14.9.2017

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